

**FORM F97
(RULE 22-5 (17))**

Court File No.: _____

Court Registry: _____

In the Supreme Court of British Columbia

Claimant: _____

Respondent: _____

DECLARATION

[Rule 21-1 of the Supreme Court Family Rules applies to all forms.]

Affidavit has been sworn or affirmed by video conference: ☐

RE APPLICATION FOR PAYMENT OUT OF INFANT'S FUNDS

I, _____, of _____
[current name in full] [address]

DO SOLEMNLY DECLARE:

1. that I am the person for whom funds are held in court and I am the person named in the order of _____ made on _____
[date]
2. that I attained the full age of 19 years on _____ and submitted with this declaration is
[date]
a copy of my birth certificate [or] my birth certificate for examination by the registry
3. that I am entitled to payment of the funds

[If the applicant's name has changed since the date of the order referred to in paragraph 1 of this declaration, check the following and provide the required proof.]

4. ☐ that my name has been changed from that shown on the original court order. Proof is attached.

[The following paragraphs must be included if the affidavit was sworn or affirmed by video conference:

[#] "I acknowledge the solemnity of making a sworn statement/solemn declaration and acknowledge the consequences of making an untrue statement." and

[##] "I was not physically present before the person before whom this affidavit was sworn or affirmed but was in that person's presence using video conferencing."]

. I acknowledge the solemnity of making a sworn statement/solemn declaration and acknowledge the consequences of making an untrue statement.

. I was not physically present before the person before whom this affidavit was sworn or affirmed but was in that person's presence using video conferencing.

I make this solemn declaration conscientiously believing it to be true, and knowing that it is of the same force and effect as if made under oath and by virtue of the *Canada Evidence Act*.

DECLARED BEFORE ME at _____)
_____,)
[commissioner's city / town])
British Columbia)
on _____)
[date])
)
)
A commissioner for taking affidavits for British Columbia)
)
_____)
[print name or affix stamp of commissioner])

If cheque is to be mailed to other than above address, state here: _____

AUTHORIZATION FOR PAYMENT OUT

[to be completed by the registry]

Original name [if changed]: _____

Registry: _____ Proceeding No.: _____

Date paid into court: _____ Treasury No.: _____
[date]

Amount (including accrued interest): \$ _____

Date: _____
[date]

Registrar